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Attorneys for Defendants

IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF OREGON

UNITED STATES OF AMERICA,

Plaintiff,

vs.

J.H. BAXTER & CO., A CALIFORNIA
LIMITED PARTNERSHIP, et al.,

Defendants.

Case No. 6:24-cr-00441-MC-2

**PETITION TO ENTER PLEA OF
GUILTY, CERTIFICATE OF
COUNSEL, AND ORDER ENTERING
PLEA**

1. The Defendant's name is J.H. Baxter & Co., A California Limited Partnership (J.H. Baxter & Co., LLP). I, Georgis Baxter Krause, am the Defendant's authorized representative and agent.

2. Defendant's attorneys are David Angeli, Amy Potter and Michelle Holman Kerin of Angeli & Calfo LLC.

3. As the agent for the Defendant, I have discussed the case fully with the attorneys. Defendant has received a copy of the Information filed in this matter. Defendant has read the

Information, or it has been read to it, and Defendant has discussed it with its attorneys. Defendant's attorneys have counseled and advised it concerning the nature of the charges, any lesser-included offenses, and the possible defenses that it might have in this case. It is J.H. Baxter & Co., LLP intent to plead GUILTY to Counts 1 and 2 of the Information. Count 1 charges Defendant with violating the Resource Conservation and Recovery Act (RCRA), Title 42, United States Code, Section 6928(d)(2)(A) specifically by treating hazardous waste without a permit. Count 2 charges defendant with violating the Clean Air Act, Title 42, United States Code, Section 7413(c)(1) specifically by violating National Emission Standards for Hazardous Air Pollutants (NESHAP) for Wood Preserving Area Sources. Defendant has been advised and understands that the elements of the charges alleged against it to which it is pleading "GUILTY" are as follows for Count 1:

First, the defendant, J.H. Baxter & Co. LLP, is a person, who;

Second, treated a waste material;

Third, the waste material was an identified or listed hazardous waste pursuant to RCRA;

Fourth, the treatment was done without a permit issued pursuant to RCRA; and

Fifth, the defendant acted knowingly.

Defendant has been advised and understands that the elements of the charges against it to which it is pleading "GUILTY" for Count 2 are as follows:

First, the defendant, J.H. Baxter & Co. LLP, is a person, who was an owner or operator;

Second, of a stationary source;

Third, who failed to comply with a design, equipment, work practice, or operational standard;

Fourth, in violation of an applicable NESHAP; and

Fifth, the defendant acted knowingly.

Defendant has had a full and adequate opportunity to disclose to its attorney all facts known to it that relate to its case. I understand that the Court may ask whether Defendant is satisfied with the advice it has received from its attorneys.

4. I know that if Defendant pleads "GUILTY," I will have to answer any questions on Defendant's behalf that the judge asks about the offense to which Defendant is pleading guilty. I also know that if I answer falsely, under oath, and in the presence of the attorneys, my answers could be used against me in a prosecution for perjury or false statement.

5. I am not under the influence of alcohol or drugs. I am not suffering from any injury, illness or disability affecting my thinking or my ability to reason except as follow: N/A. I have not taken any drugs or medications within the past seven (7) days that could affect my thinking or my ability to reason except as follows: N/A.

6. Defendant understands that conviction of a crime can result in consequences in addition to imposition of a fine and imprisonment. Such consequences may include debarment from working with the United States; loss of eligibility to receive federal benefits; loss of certain civil rights (which may be temporary or permanent depending on applicable state or federal law), such as the right to vote, to hold public office, and to possess a firearm; and loss of the privilege to engage in certain occupations licensed by state or federal governments.

7. Defendant knows that it may plead "NOT GUILTY" to any crime charged against it and that Defendant may persist in that plea if it has already been made. Defendant knows that if it pleads "NOT GUILTY" the Constitution guarantees it:

- a. The right to a speedy and public trial by jury, during which Defendant will be presumed to be innocent unless and until it is proven guilty by the

government beyond a reasonable doubt and by the unanimous vote of twelve jurors;

- b. The right to have the assistance of an attorney at all stages of the proceedings;
- c. The right to use the power and process of the Court to compel the production of evidence, including the attendance of witnesses in its favor; and
- d. The right to see, hear, confront, and cross-examine all witnesses called to testify against it.

8. Defendant knows that if it pleads “GUILTY” there will be no trial before either a judge or a jury, and that it will not be able to appeal from the judge’s denial of any pretrial motions it may have filed concerning matters or issues not related to the Court’s jurisdiction.

9. In this case Defendant is pleading “GUILTY” under Rule 11(c)(1)(B) of the Federal Rules of Criminal Procedure. Defendant’s attorney has explained the effect of its plea under Rule 11(c)(1)(B) to be as follows: The Court is not bound by the sentencing recommendations of the parties or of the Presentence Report (PSR) writer. Defendant may not withdraw its guilty plea or rescind its plea agreement if the Court does not follow the agreements or recommendations contained in that agreement.

10. Defendant knows the maximum sentence which can be imposed upon it for the crime to which it is pleading guilty. For Count 1, the maximum sentence for an organization is a fine of not more than \$50,000 per day of violation, five years’ probation, or both. The maximum sentence for an organization under Count 2 is a fine of not more than \$500,000 or twice the gross pecuniary gain or loss from the offense, five years’ probation, or both

11. Defendant knows that the judge, in addition to any other penalty, will order a special assessment as provided by law in the amount of \$400 per count of conviction.

12. Defendant knows that if it is ordered to pay a fine, and Defendant willfully refuses to pay that fine, Defendant can be returned to court, where the amount of the unpaid balance owed on the fine can be substantially increased by the judge.

13. Defendant's attorneys have discussed the Federal Sentencing Guidelines. Defendant Trust knows the Guidelines are advisory, not mandatory. Defendant also knows the sentencing judge, in determining the particular sentence to be imposed, must consider the factors set forth in Title 18, United States Code, Section 3553(a), including but not limited to: the nature and circumstances of the offense, Defendant's own history and characteristics, the goals of sentencing (punishment, deterrence, protection and rehabilitation) and the sentencing range established by the advisory Guidelines. If Defendant's attorney or any other person have calculated a guideline range for Defendant, Defendant knows that this is only a prediction and that it is the judge who makes the final decision as to what the guideline range is and what sentence will be imposed. Defendant also knows that a judge may not impose a sentence greater than the maximum sentence referred to in paragraph 10, above.

14. Defendant knows that in addition to or in lieu of any other penalty, the judge can order restitution payments to any victim of any offense to which Defendant pleads guilty. Defendant is also informed that, for certain crimes of violence and crimes involving fraud or deceit, it is mandatory that the judge impose restitution in the full amount of any financial loss or harm caused by an offense. If imposed, a victim can use an order of restitution to obtain a civil judgment lien. A restitution order can be enforced by the United States for up to twenty (20) years from the date of the entry of judgment. If Defendant willfully refuses to pay restitution as

ordered, a judge may resentence Defendant to any sentence which could originally have been imposed.

17. On any fine or restitution in an amount of \$2,500 or more, Defendant knows that it will be required to pay interest unless that fine or restitution is paid within fifteen (15) days from the date of the entry of judgment.

18. If Defendant is on probation, parole, or supervised release in any other state or federal case, Defendant knows that by pleading guilty in this court that probation, parole or supervised release may be revoked and Defendant may be required to pay additional fines or other penalties in addition to any sentence imposed on me in this court.

19. If Defendant has another case pending in any state or federal court, Defendant knows that this Petition and Plea Agreement in this case do not, in the absence of an express and written agreement, apply to any other case(s), and that Defendant can be faced with consecutive sentences.

20. Defendant's plea of "GUILTY" is based on a Plea Agreement that Defendant has made with the prosecutor. The Plea Agreement is attached hereto and incorporated herein. Defendant has read or had read to it the Plea Agreement and Defendant understands it.

21. The Plea Agreement letter dated January 3, 2025, which has been presented to the Court, contain the only agreements between the United States government and Defendant. No officer or agent of any branch of government (federal, state or local) or anyone else has promised or suggested that Defendant will receive a lesser term of imprisonment, or probation, or any other form of leniency if Defendant pleads "GUILTY" except as stated in those documents. Defendant understands that it cannot rely on any promise or suggestion made to it by a

government agent or officer which is not stated in writing in those documents, or which is not presented to the judge in its presence in open court at the time of the entry of its plea of guilty.

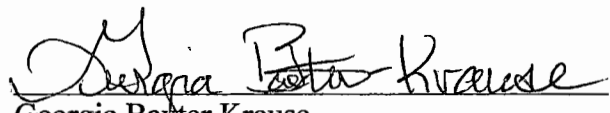
22. Defendant's plea of "GUILTY" is not the result of force, threat, or intimidation.

23. Defendant hereby requests that the judge accept its plea of "GUILTY" to Counts 1 and 2 of the Information.

24. Defendant knows that the judge must be satisfied that a crime occurred, and that Defendant committed that crime before Defendant's plea of "GUILTY" can be accepted. With respect to the charges to which Defendant is pleading guilty, Defendant represents that the facts as set forth in the Plea Agreement letter are true.

25. Defendant offers its plea of "GUILTY" freely and voluntarily and of its own accord, with a full understanding of the allegations set forth in the Information, and with a full understanding of the statements set forth in this Petition and in the Certificate of its attorneys that is attached hereto.

SIGNED by Defendant's authorized representative and agent, after reading (or having had read to Defendant) all of the foregoing pages and paragraphs of this Petition on January 22, 2025.

A handwritten signature in black ink, appearing to read "Georgia Baxter Krause", is written over a horizontal line.

Georgia Baxter Krause
Authorized Representative for Defendant J.H.
Baxter & Co., LLP

CERTIFICATE OF COUNSEL

The undersigned, as attorney for defendant J.H. Baxter & Co., LLP, hereby certifies:

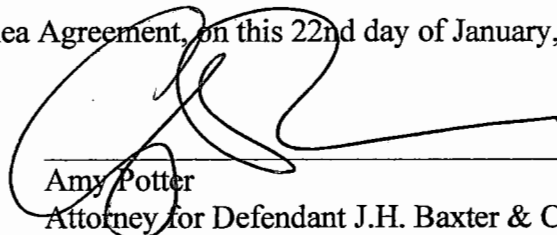
1. I have fully explained to the defendant's representative the allegations contained in the Information in this case, any lesser-included offense(s), and the possible defenses which may apply in this case.

2. I have personally examined the attached Petition to Enter Plea of Guilty and Order Entering Plea, explained all its provisions to the defendant's representative, and discussed fully with the defendant's representative all matters described and referred to in the Petition.

3. I have explained to the defendant's representative the maximum penalty and other consequences of entering a plea of guilty as described in the Petition, and I have also explained to the defendant's representative the applicable Federal Sentencing Guidelines.

4. I recommend that the Court accept the defendant's plea of "GUILTY."

SIGNED by me, and after full discussion with the defendant of the contents of the Petition to Enter Plea of Guilty and the Plea Agreement, on this 22nd day of January, 2023.



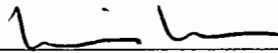
Amy Potter
Attorney for Defendant J.H. Baxter & Co., LLP

ORDER ENTERING PLEA

I find that the defendant's plea of GUILTY has been made freely and voluntarily and not out of ignorance, fear, inadvertence, or coercion. I further find the defendant has admitted facts that prove each of the necessary elements of the crime to which the defendant has pleaded guilty.

IT IS THEREFORE ORDERED that the defendant's plea of GUILTY be accepted and entered as requested in this Petition and as recommended in the Certificate of defendant's attorney.

DATED this 22 day of January, 2025, in open court.



Hon. Michael McShane
United States Judge